

Installment facility for electricity dues under clause 6.14

High Court of Judicature at Allahabad · Division Bench · 19 December 2018 · Writ-C No. 42072 of 2018 · **Writ disposed of with liberty to apply under clause 6.14 for installments.**

HEADNOTE

A consumer facing recovery of electricity arrears who is willing to pay if installments are allowed may apply under clause 6.14 of the Electricity Supply Code, 2005 to the Executive Engineer, who is competent to grant that facility. The High Court disposed of the writ without examining the demand, with liberty to apply within two weeks and a direction that the Executive Engineer consider and decide the application in accordance with law within the next two weeks.

FACTUAL SUMMARY

Arjun Raikwar filed this writ against a demand of Rs 2,59,732 as electricity dues. By order dated 1 September 2018 the Executive Engineer had requested the Collector to realise those dues. Counsel for the petitioner submitted that the petitioner was ready and willing to pay the entire amount if reasonable time were allowed or installments were fixed. The demand and the Collector-recovery request were not otherwise contested on this petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity arrears

HOLDING

Where a consumer is willing to discharge electricity arrears if installments are allowed, the proper course is an application under clause 6.14 of the Electricity Supply Code, 2005 to the Executive Engineer, who is competent to grant installment facility. The writ is disposed of with liberty to apply within two weeks; the Executive Engineer shall consider and decide any such application in accordance with law within the next two weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE RS 2,59,732 ELECTRICITY DEMAND AND THE COLLECTOR-RECOVERY REQUEST

The Court did not examine the dues or the Executive Engineer's request to the Collector on merits. ¶ 1